

Why Todd Blanche Should Not Be Attorney General

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原文标题: Why Todd Blanche Should Not Be Attorney General

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- The motion began mid-rant: " 'The National Trust for Historic Preservation' is a beautiful name, but even their name is FAKE." It said that those seeking to stop the ballroom "suffer from Trump Derangement Syndrome" and "are represented by the lawyer for Barack Hussein Obama, Gregory Craig." Then it shifted to praising Trump's brilliance— "a highly successful real estate developer, who has abilities that others don't" —and to arguing that the ballroom was "being given FREE OF CHARGE AS A GIFT TO THE COUNTRY!" This claim was dubious; the President has unsuccessfully sought a billion dollars in government funding. Yet it was also unfiltered Trump, a Truth Social post in the guise of a legal document, and it was met with predictable failure. But although the document was submitted to Richard Leon, the U.S. district judge who had issued the injunction, Blanche was targeting a different audience of one.

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In Trump’s Washington, subservience works. Last Monday, the President formally nominated Blanche to be the nation’s eighty-eighth Attorney General. Blanche, who had represented Trump in his criminal trials and was confirmed as Deputy Attorney General last March, has served in an acting capacity for more than eight weeks, since Pam Bondi was fired. He professed equanimity about getting the job permanently, announcing that, if Trump “chooses to nominate somebody else and asks me to go do something else, I will say, ‘Thank you very much. I love you, sir.’ ” But Blanche used the intervening weeks to engage in what has looked like a manic spree of auditioning for the top job.

Blanche has touted one flimsy indictment (of the former F.B.I. director James Comey , for posting on social media a photo of “86 47,” written in seashells) after another (criminal charges against the Southern Poverty Law Center, for allegedly defrauding its donors). He ramped up a seemingly stalled criminal investigation into the former C.I.A. director John Brennan, enlisting Joseph diGenova, who had represented the Trump campaign in challenging the 2020 election results, to lead it. And he presided over the creation of a nearly \$1.8-billion “anti-weaponization” slush fund, supposedly to settle the Trump family’s lawsuit against the I.R.S., for a private contractor’s leak of tax records. This looting of the Treasury has apparently been averted, following a rare revolt by Republican lawmakers. But, for the Trumps, the most valuable benefit of the deal remains—a Blanche-signed addendum stating that the federal government is “FOREVER BARRED and PRECLUDED” from pursuing an I.R.S. audit that, according to the Times , could have cost the family some hundred million dollars. (Asked about Blanche’s tenure, a Justice Department spokeswoman offered a list of “key accomplishments,” including a decrease in the national murder rate, the arrest of numerous alleged cartel members, the filing of multiple fraud cases, and the hiring of additional immigration judges.)

The Senate vote on Blanche’s nomination to be Deputy Attorney General last year was 52–46, along party lines. But that was when his background offered the hope that he would stand up for the norms of Justice Department independence. He had been a registered Democrat until 2023, the Times reported, and had worked for years as a prosecutor in the Southern District of New York, the flagship U.S. Attorney’s office. He was, former

colleagues have said, no superstar, but he was reasonably well regarded and even better liked. The optimism that Blanche would be a moderating force, though, seems to have underestimated the corrupting power of ambition. News reports suggest that Blanche has at times urged restraint; if so, his successes appear to have been few, if any. He tolerated the firing of a respected prosecutor, Maureen Comey, for no other reason than her last name. In March, at the Conservative Political Action Conference—not normally a venue for a Justice Department official—he boasted of the wholesale ouster of F.B.I. agents who had worked on Trump prosecutions, saying, “There isn’t a single man or woman with a gun, federal agent, still in that organization that had anything to do with the prosecution of President Trump.”

Last month, a federal judge in Tennessee, citing “Blanche’s vindictive motive,” ordered dismissal of the indictment of Kilmar Abrego Garcia, whom the Justice Department had prosecuted after it removed him to El Salvador, his home country, in violation of a court order, and was forced to return him to the U.S. This month, in a podcast interview with Sean Hannity, Blanche not only discussed ongoing grand-jury investigations into a supposed “grand conspiracy” among government officials to go after Trump but played along as Hannity named potential targets, from James Comey and John Brennan to the former director of National Intelligence James Clapper and President Joe Biden. “All those folks were certainly part of it,” Blanche said. This is the antithesis of how prosecutors are instructed to behave. On Wednesday, the conservative National Review came out against his nomination. “Todd Blanche has been everything President Trump wants in an attorney general, and that’s the problem,” the editors wrote.

A year ago, senators uncomfortable with the idea of Trump’s criminal-defense lawyer becoming the department’s No. 2 could point to Blanche’s testimony before the Judiciary Committee, where he said that “political prosecutions should never happen, period” and that, if pressed to bring a bogus case, “I will follow the law.” Now they have a record against which to judge those assurances. Will any of this matter to Republican senators—perhaps to members of the growing “wounded-bear caucus,” who have been the targets of Trump’s fury? A no vote from a single Republican on the committee could block the nomination. On the floor, just four Republican no votes could doom it. In a Senate that took its constitutional role seriously, Blanche would not win confirmation a second time. But, as John Thune, the Majority Leader, observed, “obviously most of our members are pretty deferential to who the President wants.” Like the nominee it will consider, this Senate is more inclined to consent to Trump than to advise him. □